

Court No. - 37

Case :- WRIT - C No. - 18958 of 2013

Petitioner :- Maa Kaila Devi Sheet Grah Pvt. Ltd.

Respondent :- State Of U.P. Thru Secy. And 3 Others

Petitioner Counsel :- Mukesh Chandra Gupta

Respondent Counsel :- C.S.C.,Amrit Lal Yadav

Hon'ble Sheo Kumar Singh,J.

Hon'ble Sudhir Kumar Saxena,J.

By means of the instant writ petition, petitioner challenges the recovery citation dated 18.3.2013 with respect to electricity dues.

Learned counsel for petitioner submits that petitioner is ready to deposit the amount in instalment if some time is provided to the petitioner. Learned counsel for Power Corporation informs that under Clause 6.14 read with Clause 6.5 of U.P.Electricity Supply Code, 2005, concerned Executive Engineer is empowered to do the same.

In view of the aforesaid statement, petitioner is permitted to pay a sum of Rs. 50,000/- within 15 days from today upon which petitioner may approach the concerned Executive Engineer along with his representation and certified copy of this order. If such application is moved within the stipulated period, the concerned Executive Engineer may adopt liberal approach in settling the dispute of the petitioner.

With the aforesaid observation, writ petition stands disposed of finally.

Order Date :- 10.4.2013

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